

		violate FRCP, rule 83, which permits district courts to adopt local rules to govern their practice so long as the local rules are consistent with the federal rules. Local Rule 41 is consistent with FRCP, Rule 41(b) in that both rules acknowledge the district court's discretion to dismiss an action with or without prejudice under FRCP, rule 41(b) and under the court's inherent powers. The Central District acted well within its authority to adopt a rule that governs its practice when it issues a dismissal for failure to prosecute without specifying whether the dismissal is with or without prejudice. Plaintiff shall give notice of this ruling.
105	De La Rosa vs. PLAN888 Inc 2025-01495101	Motion to Be Relieved as Counsel of Record Attorney Anthony Cartee and law firm Cartee, LC's motion to be relieved as counsel of record for Defendant Plan888, Inc. d/b/a Plan B is GRANTED, effective upon the filing of the proof of service of the signed order upon the client. (Code Civ. Proc., § 284, subd. 2.) Moving counsel shall lodge with the Court an updated proposed order including all information required to be listed in ¶ 6, including the client's current telephone number. An Order to Show Cause is set for May 28, 2026 at 9:30AM in Department CX102. At the hearing, the Court will strike Defendant Plan888, Inc. d/b/a Plan B's answer for its failure to appear through counsel unless it (1) substitutes in new counsel before the hearing or (2) appears at the hearing and shows good cause otherwise. (See <i>Merco Construction Engineers, Inc. v. Mun. Ct.</i> (1978) 21 Cal.3d 724, 730 [corporation may not represent itself and must appear through a licensed attorney]; <i>CLD Construction, Inc. v. City of San Ramon</i> (2004) 120 Cal.App.4th 1141, 1145, 1150 [same, and "court retains authority to dismiss an action if an unrepresented corporation does not obtain counsel within reasonable time"].) Moving counsel shall give notice of this ruling and file proof of service with the Court within 5 court days.

106	Martinez vs. Far West Restaurant Group, LLC 2025-01511268	Motion to Compel Arbitration Defendant Far West Restaurant Group, LLC’s (“Far West”) motion to compel arbitration is GRANTED. Plaintiff Brian Cisneros Martinez is ordered to arbitrate his individual claims, including the individual components of his PAGA claims. The class claims are dismissed without prejudice. The representative portion of plaintiff’s PAGA claims and this case otherwise is STAYED pending completion of arbitration. An ADR Review Hearing is scheduled for February 4, 2027 at 2:00PM in CX102. The parties must file a Joint Status Report at least 16 days before the hearing and shall request a continuance if arbitration is not yet complete. Existence of Arbitration Agreement The right to arbitration depends upon contract; a petition to compel arbitration is simply a suit in equity seeking specific performance of that contract. Little v. Pullman (2013) 219 Cal.App.4th 558, 565. The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. Id.; Perry v. Thomas (1987) 482 U.S. 483, 492 n.9 (State law applicable to contracts generally governs whether a valid arbitration agreement exists.) While the burden of persuasion is always on the moving party, the burden of production may shift in a three-step process. First, the moving party must present “prima facie evidence of a written agreement to arbitrate the controversy”, which is satisfied by attaching a copy of the arbitration agreement purporting to bear the opposing party's signature. Gamboa v. Ne. Cmty. Clinic (2021) 72 Cal.App.5th 158, 164–67. At this step, a movant need not follow the normal procedures of document authentication. Condee v. Longwood Management Corp. (2001) 88 Cal.App.4th 215, 218-219. If the moving party meets its initial burden, and the opposing party disputes the agreement, then the burden shifts to the opposing party to challenge the authenticity of the agreement. Finally, if plaintiff presents evidence that no agreement exists, the burden shifts back to the moving party to present admissible evidence of a valid arbitration agreement between the parties by a preponderance of the evidence. Gamboa, supra, 72 Cal.App.5th at 164–67. Here, there is no dispute plaintiff electronically signed the “Binding Mutual Agreement to Arbitrate Claims” (the “Agreement”) on 06-12-2024. ROA 22 Ex. 1. Accordingly, the court finds the parties formed an agreement to arbitrate. Relevant Terms of the Agreement The Agreement applies to “any controversy, claim or dispute between [plaintiff] and...Company.” ROA 22 Ex. 1. The Agreement defines “Company” as defendant Far West Restaurant Group, LLC’s and its “related entities, holding companies,
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